

LEARNER WORKBOOK

FULL NAME & SURNAME	
ID NUMBER:	
NAME OF ASSESSOR	
DATE OF ASSESSMENT	
VENUE	

MODEL ANSWERS

	ACHIEVED	NOT ACHIEVED
KNOWLEDGE		
SKILLS		

Signature of learner

Signature of Assessor

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This material has been compiled based on the **UNIT STANDARD 244182 GIVE EVIDENCE IN COURT.**

The program has been accredited by SASSETA in the Republic of South Africa.

Material compiled by: Training Dynamics Africa

HOW THIS LEARNER WORKBOOK IS COMPILED

This learner workbook has been compiled to guide you towards achieving knowledge, skills and attitudes that would enable them to prepare for, attend and give evidence in a court of law. Learners will be able to understand court structures, functions and procedures and will also be able to describe the functions, roles and responsibilities of court personnel.

1. Prepare to give evidence in court
2. Give evidence in court of law in a given scenario
3. Debrief the organisation on the presentation of evidence in the court of law in a way that will contribute towards future improvement

You have to study the content and guidelines given in your learner reference guide to complete this workbook.

Remember that this completed workbook must be handed in as it will form part of your formative assessment and will play a role in awarding you the required credits that are to be achieved upon completion of this module.

Write neatly and legibly and ensure that you do not simply copy the information contained in the learner reference guide into your workbook. Give your own opinion and ideas where applicable and write the answers in your own words to indicate your level of understanding and learning.

Good luck with the completion of this workbook.

LEARNING UNIT 1

Courts of Law in South Africa

- ♦ Demonstrate awareness of the South African criminal justice system.
- ♦ Explain the roles and functions of the different courts within the South African Criminal Justice System.
- ♦ Explain the roles of all the participants in a court.

LEARNER ACTIVITY 1(page 16)

Explain the different kind's courts in South Africa. Motivate your answer with a diagram.

Lower courts

Lower courts consist of district courts and regional courts and are presided over by a magistrate, except for some special lower courts. They function as a court of first instance, but sometimes hear appeals from the courts of chief and headmen.

District courts

A district court may only try a civil matter if the amount of the claim is less than R100 000. However, the parties in a civil matter may consent in writing to an increased jurisdiction of the court. Note that a district court cannot try matters regarding the status of a person, such as an application to declare someone presumed dead.

Regional courts

With regard to other criminal cases, it may not impose a sentence of imprisonment for more than 15 years or a fine of more than r300 000. Civil cases are normally not heard in regional courts.

Special lower courts

These courts have been instituted to handle specialized matters such as issues involving children, maintenance, speedy and inexpensive litigation in civil cases, and traditional customary law.

Higher courts

High courts consist of provincial and local divisions. A particular high court has jurisdiction within a provincial area. In some instances, a provincial division and a local division of the high court has concurrent jurisdiction within a provincial area.

As a court of first instance, a high court has jurisdiction to try any criminal offence and any civil case if the amount of the claim is more than R100 000 and if the claim is a claim for specific performance without damages in the alternative.

The high court is also the only court that hears matters regarding the status of a person. A high court may decide any constitutional matter that does not fall within the exclusive jurisdiction of the constitutional court. It can also declare a particular piece of legislation unconstitutional, but such an order will only come into force after having been confirmed by the constitutional court.

High courts have review and appeal jurisdiction of both criminal and civil cases from the lower courts. It is also possible to appeal to a full bench (three judges) of the high court against a decision of a single judge of the same court.

Special high courts

These courts have been instituted to handle specialized matters such as labour disputes, disputes concerning the use of public water, appeals concerning income tax issues, certain commercial cases, land claims, and disputes over patent rights.

The constitutional court

The constitutional court functions as a court of first instance in matters where it has exclusive jurisdiction. These matters are:

- Disputes between organs of state at national or provincial level.
- The constitutionality of parliamentary or provincial bills.
- The constitutionality of a parliamentary or provincial act, when member of the national assembly or a provincial legislature have called upon the constitutional court for an order declaring such an act unconstitutional.
- The constitutionality of an amendment to the Constitution.
- A question of whether parliament or the president has failed to fulfill a constitution duty.
- The certification of a provincial constitution.

Supreme Court of appeal

It hears appeals from all the high courts in any sentence and makes any order. It is the highest appeal court in all matters except constitutional matters. It can therefore hear appeals regarding constitutional matters, but only matters that are not within the exclusive jurisdiction of the constitutional court. Should the supreme court of appeal declare certain legislation to be unconstitutional, such a decision must be referred to the constitutional court for confirmation.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 18)**Complete the missing words:**

- ♦ An appeal is lodged from (1)_____ and takes place when the court from where the appeal is lodged, has allegedly made an error in its judgment.
- ♦ A (2)_____ also takes place from one court to another, but in the case where there has been an alleged irregularity in the proceedings.
- ♦ A district court has jurisdiction within a (3)_____ district and a (4)_____ within a specific region.
- ♦ All higher courts are presided over by a (5)_____.
- ♦ The constitutional court only handles (6)_____ and has jurisdiction within the whole of South Africa.
- ♦ The supreme court of appeal is only a (7)_____ and never functions as a court of first instance.

- [1] one court to another
 [2] review
 [3] specific magisterial district
 [4] regional court
 [5] judge or judges.
 [6] constitutional and related matters
 [7] court of appeal

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 20)

Explain in detail the role of the following people.

- ♦ The presiding officer
- ♦ Advocate
- ♦ The registrar of the high court.
- ♦ The public defender
- ♦ The public prosecutor.

The presiding officer

The presiding officer is the person who hears and decides a case. As was pointed out earlier, judges are the presiding officers in the higher courts. They are appointed for life, paid by the Department for justice and Constitutional Development, and may come from any sector of the legal profession. Judges are normally addressed as "Your Lordship" or "Your Honour." Magistrates normally preside over lower courts and are addressed as "Your worship."

Advocates, attorneys and prosecutors

These people are legal practitioners who handle cases on behalf of their clients and the state. Due to historical reasons, the professions of advocates and attorneys are divided.

Registrar of the high court

This official is responsible for the administration of justice in the high court. He/she receives fines, finalizes dates for court cases and issues summonses for people to appear in court. In the lower courts, this official is known as the clerk of the court.

Public defender

The public defender is made up of attorneys and advocates who work for the state. They appear on behalf of accused persons in criminal trials that cannot afford legal assistance.

Public protector

The public protector investigates allegations of improper behavior at any level of government.

[illegible]Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Demonstrate awareness of the South African criminal justice system.			
2	Explain the roles and functions of the different courts within the South African Criminal Justice System.			
3	Explain the roles of all the participants in a court.			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 2

The Witness

- ♦ Describe the different ways of ensuring the attendance of a witness in court.
- ♦ Use the correct terminology when addressing various role-players in a court.
- ♦ Explain the Officer's duties as a witness prior to commencement of a court case.
- ♦ Present and conduct him in a professional manner in court.
- ♦ Conduct him in accordance with accepted best practice and court protocol in a variety of circumstances.

LEARNER ACTIVITY 1 (page 27)

Explain the various methods that the court can use to ensure that a witness attends a court case.

The following methods can be used in order to make sure the witness attends the court case:

- Witnesses either receives a Subpoena or
- Are verbally warned to attend court on a given date and time or
- A written notice or are summons.

[illegible]

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 2 (page 38)

Complete the missing words in the diagram below.

2.1 In a supreme court of appeal.....



JUDGE, MY LORD OR
YOUR HONOUR

2.2 In a supreme court



Judge, My Lord or
Your Honor

2.3 In a magistrate court including regional and district courts



Requirements achieved	YES	NO
Comments in support of decision		

LEARNER ACTIVITY 3 (page 45)**Explain at least five duties of a witness.**

- Arrive well prepared at court.
- Uphold the dignity of the court by your behavior.
- Always tell the truth. By this is meant that you must tell everything you know openly, accurately and without doubt. Present evidence on only what you have seen or heard, in other words, only of what you have observed. Do not make any deductions; it is the duty of the court. Never give your opinion concerning facts. The presiding officer or the prosecutor will ask your opinion if it is necessary. Never exaggerate or add untruths to your statement with a view of obtaining a conviction. Cases are known where Judges and Magistrates have refused to accept the evidence of an officer because it was not trustworthy. The prosecutor was thus compelled not to lead evidence of the officer before such Judge and Magistrate again.
- In criminal cases, the onus to prove guilt lies with the State and it is not the accused to prove that he is not guilty. An honest and conscientious officer will not blame anybody when an accused is found not guilty, but will rather feel proud that he is living in a democratic country where a guilty person is found not guilty rather than that an innocent person is convicted.
- The investigating officer must ensure that his witnesses are at court and may not leave the court without the permission of the presiding officer. Should it be impossible for the investigating officer to be at court, the prosecutor must be informed so that arrangements can be made for him to give his evidence at a later stage. To be absent from court without permission not only leaves the prosecution in the dark, but also obstructs the administration of justice and causes friction between departments.
- Do not lose your temper when the accused pleads not guilty. Guard against a personal quarrel between yourself, the accused or his counsel. It is the prerogative of the accused to plead not guilty. Do not give false evidence to obtain a conviction when the accused pleads not guilty. The result of trial should not effect your evidence in any manner.
- Some legal practitioners are very friendly with the witnesses before the trial. In most cases this is only a trick to obtain information concerning the case by asking casual questions. Others again, discuss cases openly with witnesses. Witnesses must refuse to discuss cases with legal representatives and inform them that they will have the opportunity of cross-examination during the trial.
- Other witnesses must also be prepared, mentally and otherwise. Arrange for a consultation with the prosecutor and give them the opportunity to read the statements before giving evidence.

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Describe the different ways of ensuring the attendance of a witness in court			
2	Use the correct terminology when addressing various role-players in a court			
3	Explain the Officer's duties as a witness prior to commencement of a court case			
4	Present and conduct him in a professional manner in court			
5	Conduct him in accordance with accepted best practice and court protocol in a variety of circumstances			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 3

Process of Giving Evidence

- ♦ Explain and demonstrate knowledge and understanding of the rules of evidence in the event of giving evidence in a court of law.
- ♦ Give verbal evidence in a simulated courtroom situation.
- ♦ Explain the legislative requirements for the presentation of verbal evidence in court, including hearsay evidence.
- ♦ Use techniques that can use when getting intimidated during cross examination.
- ♦ Use tactics that the officer can use when getting intimidated during cross examination.
- ♦ Use notes to provide evidence during a court case.

LEARNER ACTIVITY 1 (page 45)**Explain at least five the duties of a witness.**

- Arrive well prepared at court.
- Uphold the dignity of the court by your behavior.
- Always tell the truth. By this is meant that you must tell everything you know openly, accurately and without doubt. Present evidence on only what you have seen or heard, in other words, only of what you have observed. Do not make any deductions; it is the duty of the court. Never give your opinion concerning facts. The presiding officer or the prosecutor will ask your opinion if it is necessary. Never exaggerate or add untruths to your statement with a view of obtaining a conviction. Cases are known where Judges and Magistrates have refused to accept the evidence of an officer because it was not trustworthy. The prosecutor was thus compelled not to lead evidence of the officer before such Judge and Magistrate again.
- In criminal cases, the onus to prove guilt lies with the State and it is not the accused to prove that he is not guilty. An honest and conscientious officer will not blame anybody when an accused is found not guilty, but will rather feel proud that he is living in a democratic country where a guilty person is found not guilty rather than that an innocent person is convicted.
- The investigating officer must ensure that his witnesses are at court and may not leave the court without the permission of the presiding officer. Should it be impossible for the investigating officer to be at court, the prosecutor must be informed so that arrangements can be made for him to give his evidence at a later stage. To be absent from court without permission not only leaves the prosecution in the dark, but also obstructs the administration of justice and causes friction between departments.
- Do not lose your temper when the accused pleads not guilty. Guard against a personal quarrel between yourself, the accused or his counsel. It is the prerogative of the accused to plead not guilty. Do not give false evidence to obtain a conviction when the accused pleads not guilty. The result of trial should not effect your evidence in any manner.
- Some legal practitioners are very friendly with the witnesses before the trial. In most cases this is only a trick to obtain information concerning the case by asking casual questions. Others again, discuss cases openly with witnesses. Witnesses must refuse to discuss cases with legal representatives and inform them that they will have the opportunity of cross-examination during the trial.
- Other witnesses must also be prepared, mentally and otherwise. Arrange for a consultation with the prosecutor and give them the opportunity to read the statements before giving evidence.

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 2

Compare Column A with the correct Description in Column B. Only one correct description fits the word in Column A (Work through your complete Learner Guide to complete this learner activity.)

	COLUMN A		COLUMN B
1.	Evidence	a.	knowledge that has been observed heard and experienced and which could be of assistance to the crime investigator.
2.	Information	b.	The officer must not introduce himself and commence giving evidence, because it is the duty of the prosecutor to do this.
3.	Proof	c.	refers to the sum total of all the facts presented during evidence.
4.	Giving verbal evidence	d.	valid information which, if admissible in court, strives to prove facts or issues.
5.	Principles of effective testifying	e.	One question after another with little time to answer
6.	Rapid fire questions	f.	He must only speak when questions are asked and an answer must be limited to that implied by the question
7.	Restrictive questions	g.	Cross-examiner stares witness right in the face; shouts "That is so, isn't it, officer?" This is followed up with rapid questions
8.	Suggestive leading questions	h.	"Did you discuss this case with anyone?"
9.	Aggressive approach	i.	"was the murder weapon a knife"
10.	Conflicting answers	j.	Witness answers "the exhibit was seized about meters from the body of the deceased." Cross-examiner says "you say the exhibit was 42 meters from the deceased?"
11.	Reversing	k.	"But Lieutenant Barkley just said" And so on"

COLUMN A	1	2	3	4	5	6	7	8	9	10	11
COLUMN B	d	a	c	b	f	e	h	i	g	k	j

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 3 (page 65)**Explain how you will use the investigation notes with specific reference to the requirements that investigation notes needs to meet.**

Whilst giving evidence, the officer can make use of notes that he made during the investigation process. It should only be used when detail in respect of time, distance and numbers which often cannot be expected of him to remember is required. When the officer continually refers to his notes to be able to raise aspects that he is just unable to recall, his credibility may be doubted. It could also indicate that the officer neglected to prepare himself before testifying.

Before the officer (witness) may make use of his notes the following three requirements must be met:

The notes must have been written by himself at the time or recorded by someone else on his instruction. He may not prepare a document long after the event to use as an aid while testifying. On the other hand, an expert such as a scientist, an engineer, architect or accountant may, with a view to litigation, prepared a report for use in the witness-box to refresh his memory, even if it is not the original notes that he made during his investigation.

The crime investigation must be in possession of the original notes unless there is proof that they were destroyed or lost, in which case a copy may be used.

The officer must be prepared to place the notes at the disposal of the court for perusal by any of the parties. It is only necessary to provide the relevant parts which he intends using.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain and demonstrate knowledge and understanding of the rules of evidence in the event of giving evidence in a court of law.			
2	Give verbal evidence in a simulated courtroom situation.			
3	Explain the legislative requirements for the presentation of verbal evidence in court, including hearsay evidence.			
4	Use techniques that can use when getting intimidated during cross examination.			
5	Use tactics that the officer can use when getting intimidated during cross examination.			
6	Use notes to provide evidence during a court case.			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 4

The Court Process

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Show an understanding of the sequence of events during court proceedings
2. Communicate with the state prosecutor to confirm his involvement or role in the judicial process as a witness

LEARNER ACTIVITY 1 (page 69)**Complete the missing words:**

- ♦ In (1)_____ the state prosecutor will read the charge against the accused directly from a (2)_____.
- ♦ In higher courts the (3)_____ will read the charge against the accused from a (4)_____. The accused will then be asked to (5)_____.

- [1] lower courts
 [2] charge sheet
 [3] state prosecutor
 [4] an indictment
 [5] plead

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2 (page 69)**Explain the meaning and use of an indictment.**

This is an official document used by state prosecutors. It contains the name of the accused, the charge against him, the date of the alleged crime, the place where it took place as well as any additional info such as the detail of possible victims. It is also commonly known as the J15 form. The figure after the J refers to the official document number in used by the Department of the Justice Department.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3 (page 69)**Explain the difference between an indictment and a charge sheet.**

In lower courts the state prosecutor will read the charge against the accused directly from a charge sheet.

In higher courts the state prosecutor will read the charge against the accused from an indictment. The accused will then be asked to plead.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4 (page 71)

Explain the complete trial procedure with special emphasis on the following:

- ♦ Course of the trial
- ♦ Attendance of the accused
- ♦ Plead
- ♦ The case for the State
- ♦ Examination-in-chief of state witnesses
- ♦ Re-examination of state witnesses
- ♦ The case for the defense
- ♦ Judgements
- ♦ Sentence

Course of the trial

The presiding official is in charge of the course of the trial. All parties, the court personnel and the public must, promptly comply with all orders given by this official during the trial, in order that the trial runs smoothly. A deliberate disregard of orders can lead to a summary sentence for contempt of court.

Attendance of the accused

At the commencement of the trial the accused appears personally or is escorted into the courtroom. Although the court has discretion to allow the accused to take up another suitable position, he as a rule stands in the dock.

After the presiding official (magistrate or judge) has been seated in court, the case is called by the prosecutor in the lower courts or by the registrar in Supreme Court cases. By “calling the case” is meant a formal announcement by the registrar or prosecutors where the following is said: “ I call the case of the State against ...so-and-so.”

Once the case has been called, the charge(s) are put to the accused that is to say, read out loud to him. In the lower courts the prosecutor puts the charge(s). At supreme court trials the charge(s) are put to the accused by the registrar (judges clerk), If the accused does not understand or is not conversant with the language in which the charge sheet or indictment is worded, the charge(s) are explained to him/them by the presiding official or interpreted in his/ their languages. Where a number of accused are charged with the same crime but different charges, then each separate charge must be read to each accused. The presiding official must ensure that each accused knows exactly what he is pleading to. After the charge(s) have been put, the accused is asked by the court to plead to the charge(s).

Plead

In the case of trivial offences the accused can be convicted merely on his plea of guilty. In this case the prosecution need not present any evidence. If the accused pleads guilty to a more serious offence, the court must, before the accused is convicted satisfy itself that the accused is guilty as he has intimated in his plea.

In order to eliminate unnecessary evidence, and to determine exactly what the issues of dispute are between the state and the accused, the court may put certain questions to the accused after he has pleaded.

The case for the State

After the plead procedures have been disposed of, it is the duty of the prosecutor to present the first evidence in court. This is done because there is a continuous responsibility on the State to prove the guilt of the accused beyond all reasonable doubt.

Witnesses are called to the witness box one by one where they are questioned. Except where a law stipulates otherwise all evidence is given verbally. An interpreter must be appointed if the accused does not understand the language of the witness.

Examination-in-chief of state witnesses

After a state witness has taken the oath or affirmation or has been warned, the prosecutor questions him. The questioning of a state witness by the prosecutor is known as the examination-in-chief of the witness. It is the duty of the prosecutor to assist each state witness during the examination-in-chief in order that the evidence is presented to the court logically and coherently. No leading questions may be put to a witness during the examination-in-chief, except questions in respect of formal aspects that are not in issue, and introductory questions that are asked to get the witness started.

The right to cross-examination arises after a witness has delivered his evidence-in-chief. Should the court adjourn while a state witness is under cross-examination, it would create an irregularity if the prosecutor speaks to the said witness before the cross-examination of that witness has been completed.

Re-examination of state witnesses

After a state witness has been cross-examined by the defence, an opportunity is afforded to the state to re-examine the witness. The questions that may be put to the witness have the express aim of rectifying any misconception that may have arisen from the cross-examination. Also, the version of a witness which is incomplete after cross-examination, may be complemented and put in the correct perspective before the court by means of re-examination.

Questions by the court to clarify unclear issues

The court (presiding official) may at any time during the chief-, cross-, or re-examination of a witness (irrespective whether a state or defence witness) intervene and put questions to the particular witness.

When the prosecutor has placed all the evidence for the state before the court, he closed the Closing of the state case. He does this by means of an informal announcement which in practice is as follows: "That is the case for the State" or "I close the State case"

Prosecution and defense may address the court at the conclusion of the evidence

After all the evidence has been presented, the prosecuted, the prosecutor may address the court and thereafter the accused may address the court.

The case for the defence

If the accused is not acquitted at the close of the state case, the court must ask him whether he intends presenting evidence on behalf of his defense. If he answers in the affirmative he may, just as in the case of the prosecutor at the state case, address the court in order to enlighten it, without comment as to the evidence that he wishes to present on behalf of the defense.

If the accused is to testify on behalf of his defense, he is called as a witness before any other witness for the defense, except where the court, on the strength of reasonable grounds, allows otherwise.

An accused who chooses to testify need not necessarily testify from the witness-box. Although it is the practice, and also desirable that he should give his evidence from the witness box, there is nothing to prevent him from testifying under oath from the dock. When the accused has testified of his own free will, he may question any other witness for the defense.

Defense witnesses are subject to cross-examination by the accused and re-examination by prosecutor in the same way as state witnesses by the prosecutor during the examination-in-chief.

After the accused has presented the case for the defense, he closes his case.

Summons and recall of witnesses by the court for questioning

The competence of the court to recall a witness for further questioning is discretionary. The discretion of the court to recall witnesses for questioning becomes a duty if it appears to the court that the further evidence of the particular witness is essential for the just adjudication of the case. A witness, who is summoned in this manner by the court to testify, is a witness of the court. See example of summons underneath.

Judgments

After the court has heard the speeches (also known as addresses or arguments) of the prosecutor and the accused or his counsel the court must deliver judgment. The court may, where it does not deliver judgment ex tempore, reserve its judgment, that is to say that the court may take time to prepare its judgment.

Sentence

If the accused is found guilty, the accused may present evidence in mitigation of sentence to the court. Here-after the sentence is passed. The ultimate test for the crime investigator rests in the presentation of his investigation findings in court. The manner in which the officer prepared his findings, the impression that he made on the court by his conduct, the particular manner in which he gives the evidence, and the value that the court attaches to his evidence, is the sum total of his expertise and ability. It is the reward for his labour in the process of adducing evidence.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5 (page 74)

Discuss the role of the crime investigation officer in the judicial process. Put special emphasis on the communication and importance of the court process:

A crime investigation may solve a case only by means of knowledge which he already possesses. In other cases he utilizes information from other sources such as victims, suspects, witnesses and physical clues, for example. The preparation of a case for the trial does not only mean mere organization, but a systematic approach in order to be able to present all information gathered during the investigation process to the State Prosecutor for evaluation and presentation, in a chronological and orderly manner.

Success can only be gained in court if the investigation is thoroughly prepared and evidence is effectively presented. "Marshalling the evidence, by complete, early and skillful investigation is recommended procedure. The essentiality of preparing is emphasized by the following factors:

- Evidence must be presented in chronological sequence in proving the guilt of the accused.
- Gathered evidence is presented in court by third parties.
- The investigator has information at his disposal that the court does not.
- The eventual test for the investigator's finding is in the presentation thereof in court"..... no matter how brilliant the investigator He cannot expect to advance if he fails in the courtroom".
- The degree to which a case is fully and thoroughly investigated, and the shortcomings thereof, will be revealed in court; and
- Preparation for the trial comprises of operational preparation, preparation of witnesses, co-ordination with the prosecutor, preparation of the crime investigator's evidence and support of the State Prosecutor during the trial.

This image shows a blank sheet of white paper with horizontal ruling lines. The lines are evenly spaced and extend across the width of the page. There are no margins, text, or other markings on the paper.Comments in support of decision

LEARNER ACTIVITY 6 (page 81)

Explain the method of using the investigation diary and a memorandum to provide feedback to the relevant role players involved:

Another method would be to fill in the details of the court results in the investigation diary contained within the investigation docket. This would however only be applicable if the officer witness is also the person investigating the case on behalf of the company or client, and then conducting the investigation in similar fashion to a private investigator.

[illegible]Comments in support of decision

LEARNER ACTIVITY 7

Indicate whether the following statements are TRUE or FALSE by ticking in the applicable box.

NO	Statements	True	False
1.	An appeal is lodged from one court to another and takes place when the court from where the appeal is lodged, has allegedly made an error in its judgment	X	
2.	Geographical area and the type of case will not determine the court where a case starts, where an appeal is heard and where a case is reviewed.		X
3.	A district court may only try a criminal matter.		X
4.	Special lower courts have been instituted to handle specialized matters such as issues involving children, maintenance, speedy and inexpensive litigation in civil cases, traditional customary law and minor criminal cases.	X	
5.	As a court of first instance, a high court has jurisdiction to try any criminal offence and any civil case if the amount of the claim is more than R100 000 and if the claim is a claim for specific performance without damages in the alternative.	X	
6.	The supreme court of appeal hears appeals from all the high courts in any sentence and makes any order. It is not the highest appeal court in all matters.		X
7.	It is wise, on arrival at court, to report to the JUDGE and advise him of your presence in case either party wishes to discuss any aspects of the case.		X
8.	In the South African Criminal Justice System, the burden of proof in criminal cases lies with the DEFENSE COUNCEL.		X
9.	The authority to impose punishment lies with the State alone.	X	

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 8

The learner needs to attend a court case.

Write a report on your experience during the attendance of the court proceedings. The following important criteria needs to reflect in your report.

- ♦ **The role of the witness.**
- ♦ **The role of the prosecutor.**
- ♦ **The case details. i.e. Case number, date of court case, relevant parties involved.**
- ♦ **The complete court proceedings.**

Attach your report at the back of the learner workbook and mark it clearly assignment : “Learner activity 8 , The court process.”

Requirements achieved	YES	NO
Comments in support of decision		

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Show an understanding of the sequence of events during court proceedings			
2	Communicate with the state prosecutor to confirm his involvement or role in the judicial process as a witness			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 5

Providing feedback

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Use the recording system, which may assist with the notification of the company and clients as to the outcome of the criminal proceedings

LEARNER ACTIVITY 1 (page 81)

Explain the required information which will be necessary to provide detailed feedback.

For statistical and insurance purposes the employer will want to know exactly what the outcome of a judicial hearing was.

A positive outcome, where an accused was found guilty could mean the difference between the employer having to pay compensation to the client, or the insurance company having to pay the employer or client. Where the outcome is negative, i.e. the accused is acquitted; the customer or victim may bring a claim against the security company as employer.

The duty in this case would be for the officer to inform the employer of the outcome of the court case.

The employee officer could give feedback to his own company in the **manner prescribed by the company**. The more usual methods would be to make an entry of the final results of a court case in the pocket book, detailing the outcome and results.

Another method would be to fill in the details of the court results in the investigation diary contained within the investigation docket. This would however only be applicable if the officer witness is also the person investigating the case on behalf of the company or client, and then conducting the investigation in similar fashion to a private investigator.

A third method could be a letter or memorandum to the employer or the client detailing the charge against the accused, the applicable reference numbers and the results obtained by court verdict. For practical purposes, the officer may use the following form or similar document when informing the company.

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Use the recording system, which may assist with the notification of the company and clients as to the outcome of the criminal proceedings			

Evidence Collector Signature

Date

Security Officer Signature

Date